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2026 April 30

Megan Grimball, Co-Chair
Section 301 Committee
Office of the United States Trade Representative
600 17th St. NW
Washington, D.C. 20508

RE: Section 301 Investigation of Acts, Policies, and Practices of Various Economies Related to the Failure to Impose and Effectively Enforce a Prohibition on the Importation of Goods Produced with Forced Labor. [POST-HEARING COMMENT]

Dear Members of the Section 301 Committee:

Fird Tea North America respectfully submits these post-hearing comments in response to further questions raised during the testimonies given on 28 April 2026.

Fird Tea requests that Chinese black and green teas (HTS codes beginning: 0902) and instant tea/extracts (Instant/Extracts of Tea (2101.20 series) be exempted from any proposed tariff. Tariffs would bring disproportionate economic harm to US tea businesses and US consumers. The US tea industry, particularly specialty tea, is reliant on continued access to Chinese tea imports for present and future growth and success.

- Fird Tea North America, LLC is a US company importing and distributing Chinese teas to the US tea industry and tea businesses. The company is the largest importer of Chinese specialty tea in the US. Tea is a growing industry in the US, with Chinese tea and matcha as a significant driver of that growth.
- Chinese teas have a significant historical and cultural value to America. The Boston Tea Party and similar events of the American Revolution were motivated by onerous and unreasonable impediments to the import of Chinese tea. As the US celebrates the 250th anniversary of the signing of the Declaration of Independence, Fird Tea recognizes the meaningful and ongoing value of the Chinese tea trade with the United States.



- The purpose of the tariffs is to affect China's practices relating to forced labor. Imposing punitive tariffs on tea would not be effective in changing these practices because tea exports are a very small part of China's overall tea sector. The majority of tea that China produces is consumed domestically.
- The China tea trade does not suffer from forced labor, as the majority of China's tea farmers are smallholder farmers whose farms are family businesses.
 - To further clarify, the Chinese tea industry does not meaningfully produce teas, or process teas, in the Xinjiang region of China. The Chinese tea industry is not associated with Uighur forced labor.
 - The Chinese tea industry is becoming less labor-intensive, not more. Mechanized harvest and factory automation mean fewer opportunities for any potential of forced labor.
 - The Chinese tea industry has a track record of using targeted tea farming and tea production as a means of poverty reduction and rural infrastructure development in some of the poorest counties in the nation: <https://firsdtea.com/blog-china-tea-and-government-policy/>
 - Further, punitive tariffs on tea would have a disproportionate economic impact on small and medium-sized enterprises in the US because most of the US importers are small and medium-sized businesses.
 - Instances of forced labor in the tea industry have been known to occur, but reports are NOT related to China, and are related to the plantation system of tea farming. China does NOT operate using the plantation system- its independent smallholder farmers contract with local processing facilities who compete to purchase tea harvests. Independent studies associate forced labor in the tea industry with the plantation system:
<https://thefreedomhub.org/blog/ending-modern-slavery/forced-labour-in-tea/>
<https://sheffield.ac.uk/research/forced-labour>
- The United States is not a tea producing nation. There is no US-grown tea of meaningful commercial volume that needs to be protected by tariffs, nor are there any farm-based jobs that would be protected.
- Like wine or coffee, tea varies dramatically due to local terroir (geography, climate, and local manufacturing techniques). China has many unique teas that are unavailable elsewhere, due to their unique cultivars, terroirs, and processing methods. In the area of specialty tea, many teas are unable to be sourced anywhere else in the world.



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- China's tea production is a rural-based, long term crop that was not designed to capture foreign business. According to recent China Bureau of Statistics and International Tea Committee reports:
 - China produces approx 8.2 billion pounds of tea and exports 815 million pounds for domestic consumption. That means that roughly 90% of China's tea stays in China
 - China exports 26 million pounds to the US (less than 1% of total production, and less than 4% of total export volume)
 - This quantity is not a significant amount of tea trade from the perspective of Chinese tea producers.
- The imposition of tariffs on Chinese tea will not impact the Chinese producer, exporter, or government. However IT WILL negatively impact the US consumer.
 - About one-third of US green tea imports originate from China. This includes high value specialty teas, matcha, and base green teas for bottled green tea beverages
 - About one-third of US organic tea imports originate from China. As US consumers are encouraged to make healthy, nutritious beverage decisions, China tea stands out as an important contributor to Making America Healthy Again.

In my more than eight years of work with Firsd Tea, the role of China's tea trade has remained consistent in these levels of performance, showing that Chinese tea is a necessary and valued part of the US tea industry, and a benefit to US tea consumers.

Firsd Tea strongly urges you to exempt tea from the proposed Section 301 actions as it will negatively impact American businesses and citizens while having no effect on forced labor issues in China.

Thank you for your time and consideration,

Jason Walker

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